

		Thus, Plaintiff has not established the probable validity of its real property claim. Because Plaintiff's real property claim does not have probable validity on three separate grounds, the court need not address Seneca's remaining arguments. The motion is GRANTED. <u>Attorney Fees</u> A prevailing party on a motion to expunge a lis pendens is entitled to recover "reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38.) Here, Seneca is the prevailing party. Plaintiff has not established substantial justification for opposing the motion or other circumstances making the imposition of fees and costs unjust. Seneca requests attorney fees and costs in the amount of \$159,207.63. (Robinson Decl., ¶¶6-7, Exs. J, K.) Based on the supporting declaration, this amount includes tasks over the past five months, including "factual investigation, preliminary and subsequent legal research, preparation and propounding of written discovery, subsequent enforcement of that discovery (e.g., repeated meet and confer efforts, reviewing multiple iterations of Plaintiff's responses to discovery, preparing and filing ensuing motions to compel), preparing for and taking the deposition of Plaintiff's designated 'person most qualified,' digesting all of the foregoing, along with our drafting, polishing and filing of the actual motion and supporting papers." (Id., ¶¶ 4, 6.) These tasks are not limited to making the motion. Thus, Seneca's attorney fee request is unreasonable in amount. No later than nine court days before the continued hearing date, Seneca is ordered to file a supplemental declaration and billing statements for tasks associated with conducting legal research, preparing the motion, reviewing the opposition, preparing the reply, and attending the hearing. Plaintiff may file a supplemental reply not more than three pages addressing the fees no later than five court days before the continued hearing date.
4.	MONSTER ENERGY COMPANY VS. C.H. ROBINSON WORLDWIDE, INC. 2026-01537801	MOTION FOR ORDER TO STAY PROCEEDINGS Defendant C.H. Robinson Worldwide, Inc's Motion to Stay Proceedings is GRANTED. The Court exercises its discretion and ORDERS this proceedings stayed pending the resolution of the proceedings on the same issues

		currently pending in Florida. (See <i>GSDMIA, INC., etc. v. MONSTER ENERGY COMPANY</i>, etc., et al, case no. 16-2025-CA-007624-XXXX-MA.) Plaintiff’s objections are overruled. Plaintiff’s requests for judicial notice are granted. “Granting a stay in a case where the issues in two actions are substantially identical [citations] is a matter addressed to the sound discretion of the trial court.” (<i>Thomson v. Continental Ins. Co.</i> (1967) 66 Cal.2d 738, 746.) There is currently an action pending in Florida regarding whether GSDMIA is bound to arbitration. This action seeks the same relief. Thus, the Court exercises its discretion to stay this proceeding while the Florida proceeding on the same claims is resolved. The Court vacates the CMC and sets the matter for an OSC re: Stay for 11/20/26 at 9:00 a.m., in Dept. C32.
5.	EVANS VS. DEL MAR REALTY AND INVESTMENTS 2023-01369446	1. MOTION TO QUASH SUBPOENA Plaintiff/Cross-defendant Aaron Evans’ Motion to Quash Defendant/Cross-complainant Allview Real Estate, Inc.’s (Allview) business records subpoena issued to AT&T is GRANTED in part as to request numbers 2, 6, 10, and 14 only. <u>Legal Standard</u> Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).) Plaintiff moves to quash the subpoena in its entirety on the grounds Allview has not yet identified the alleged trade secrets with sufficient particularity. Plaintiff also moves to quash request numbers 2, 6, 10, and 14 on the additional grounds they are overly broad and seek Plaintiff’s private information and potentially privileged communications between Plaintiff and his counsel. <u>Sufficient Particularity</u> Code of Civil Procedure section 2019.210 provides, “In any action alleging the misappropriation of a trade secret under the Uniform Trade Secrets Act . . . , before commencing discovery relating to the trade secret, the party alleging the misappropriation shall identify